

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Kristen Lanham-Hostetter	Team: Team # 1	CCRB Case #: 201010353	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 07/24/2010 10:50 PM	Location of Incident: § 87(2)(b) [REDACTED] 32nd Precinct stationhouse		18 Mo. SOL 1/24/2012		Precinct: 28
Date/Time CV Reported Thu, 07/29/2010 10:33 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Thu, 07/29/2010 11:08 AM		

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]

Witness(es)	Home Address
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. POM Jaysen Basnight	29694	936178	032 PCT
2. POM Thomas Cozart	28181	938283	032 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Adam Mercado	03757	902006	032 PCT
2. POM Michael Tedeschi	03421	943868	032 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Jaysen Basnight	Discourtesy: At § 87(2)(b) [REDACTED] and § 87(2)(b) [REDACTED] in Manhattan, PO Jaysen Basnight spoke obscenely and/or rudely to § 87(2)(b) [REDACTED]	A . Unsubstantiated
B . POM Jaysen Basnight	Discourtesy: At § 87(2)(b) [REDACTED] and § 87(2)(b) [REDACTED] in Manhattan, PO Jaysen Basnight spoke obscenely and/or rudely to § 87(2)(b) [REDACTED]	B . Alleged Victim Unavailable
C . POM Jaysen Basnight	Force: At § 87(2)(b) [REDACTED] and § 87(2)(b) [REDACTED] in Manhattan, PO Jaysen Basnight used physical force against § 87(2)(b) [REDACTED]	C . Unsubstantiated
D . POM Thomas Cozart	Discourtesy: Inside the 32nd Precinct stationhouse, PO Thomas Cozart spoke obscenely and/or rudely to § 87(2)(b) [REDACTED]	D . Unsubstantiated
E . POM Thomas Cozart	Abuse: Inside the 32nd Precinct stationhouse, PO Thomas Cozart threatened § 87(2)(b) [REDACTED] with the use of force.	E . Unsubstantiated

Case Summary

§ 87(2)(b) filed this complaint on behalf of her son, § 87(2)(b) via the CCRB online website, though she was not present for the incident. On July 24, 2010, at approximately 10:50pm § 87(2)(b) and his friends, § 87(2)(b) and § 87(2)(b) were walking down the street at § 87(2)(b) and § 87(2)(b) in Manhattan. A large crowd passed by the same location, and police arrived to disperse the crowd. The following allegations ensued:

- **Allegation A – Discourtesy:** At § 87(2)(b) and § 87(2)(b) in Manhattan, PO Jaysen Basnight spoke obscenely and/or rudely to § 87(2)(b) § 87(2)(g). It is recommended that **allegation A be closed as unsubstantiated.**
- **Allegation B - Discourtesy:** At § 87(2)(b) and § 87(2)(b) in Manhattan, PO Jaysen Basnight spoke obscenely and/or rudely to and § 87(2)(b) § 87(2)(g). It is recommended that **allegation B be closed as victim unavailable.**
- **Allegation C – Force:** At § 87(2)(b) and § 87(2)(b) in Manhattan, PO Jaysen Basnight used physical force against § 87(2)(b) § 87(2)(g). It is recommended that **allegation C be closed as unsubstantiated.**
- **Allegation D – PO: Discourtesy:** Inside the 32nd Precinct stationhouse, Thomas Cozart spoke obscenely and/or rudely to § 87(2)(b).
- **Allegation E – Abuse:** Inside the 32nd Precinct stationhouse, PO Thomas Cozart threatened § 87(2)(b) with the use of force. § 87(2)(g). It is recommended that **allegations D and E be closed as unsubstantiated.**

Results of Investigation

Civilian Statements

Victim: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b) black male § 87(2)(b) has black hair and brown eyes. § 87(2)(b)

§ 87(2)(b) provided a phone statement on August 5, 2010, was interviewed at the CCRB on August 26, 2010, and answered additional follow-up questions on October 21, 2010 (encl. 7a-h). § 87(2)(g). On July 24, 2010, at approximately 10:50pm, § 87(2)(b) was hanging out with five friends, named § 87(2)(b) and § 87(2)(b) at § 87(2)(b) and § 87(2)(b) in Manhattan. Before coming to the location of the incident, § 87(2)(b) and his friends had been walking around at 42nd Street, in

Manhattan. They were bored and decided to take a train uptown to figure out something to do up there. None of them had been drinking.

They were all standing at the corner of § 87(2)(b) and § 87(2)(b) when large group of approximately 150 people, many of them yelling a gang name which § 87(2)(b) could not remember, walked southbound on § 87(2)(b) past § 87(2)(b) and his friends. A few of the people in the group recognized § 87(2)(b) and his friends from when they were young children, and stopped to say hello. The rest of the crowd continued to move towards § 87(2)(b).

They had only stopped to say hello for a few moments before the police arrived. Four marked patrol cars and two marked police vans arrived, with the four cars and one of the vans stopping on § 87(2)(b) blocking § 87(2)(b) and the other van stopping on § 87(2)(b) blocking § 87(2)(b). The crowd started to run towards § 87(2)(b) but stopped when the van blocked that street. All of the officers got out of the cars and told the crowd to disperse, or they would be arrested. Most of the crowd ran away. § 87(2)(b) started to walk away southbound on § 87(2)(b). In his phone statement, § 87(2)(b) stated that he was slow to walk away, due to construction in the street. He had gotten halfway down the block before an officer whose nameplate read “Basnight,” pushed him in the lower back with one hand and told him, “Hurry the fuck up and move off this street right now.” PO Basnight was described as a black male who stood at 6’ tall, weighed approximately 230 pounds, was in his mid thirties to early forties, had a five o’clock shadow, and wore a uniform. The investigation identified this officer as PO Jaysen Basnight of the 32nd Precinct. PO Basnight did not push him so hard that he fell, but it caused § 87(2)(b) to jump a little as he was walking forward. § 87(2)(b) told PO Basnight that he had nowhere to go, as the police had blocked the intersections, and there was construction in the middle of § 87(2)(b) that made crossing through traffic treacherous. PO Basnight said, “Oh, you’re trying to be a smartass.” Later in the interview, § 87(2)(b) said that PO Basnight then told him, “Now you’re going to jail.” PO Basnight pushed § 87(2)(b) against a patrol car on § 87(2)(b) close to § 87(2)(b). PO Basnight pushed him so that his back was to the car. § 87(2)(b) was shocked when he was pushed against the car, and kept his hands to his sides until PO Basnight told him to put his hands up. § 87(2)(b) complied and raised his hands. PO Basnight punched § 87(2)(b) in the left jaw twice with his right hand. § 87(2)(b) asked PO Basnight why he punched him in the face, but was not sure if PO Basnight answered. § 87(2)(b) s friend, § 87(2)(b) ran over at this point, and told PO Basnight that he did not have to act that way. PO Basnight told him to “Shut the fuck up.”

PO Basnight then turned § 87(2)(b) around so the front of his body was against the trunk of the patrol car, and grabbed § 87(2)(b) s left wrist and twisted it behind his back. He never issued § 87(2)(b) any instructions. An unidentified officer described as a white male who stood at 6’ tall, weighed approximately 215 pounds, had a stocky build, had light brown hair, and was in his mid twenties removed § 87(2)(b) s hat from his head and threw it in the street. § 87(2)(b) said, “You’re twisting my arm!” PO Basnight then shouted, “Resisting arrest! Stop resisting!” even though § 87(2)(b) did not move his body at all. In his phone statement, § 87(2)(b) stated that PO Basnight had already handcuffed one of his wrists before stating that he was resisting arrest. PO Cozart, whose name § 87(2)(b) had previously read on his nameplate, held the back of his head so his left jaw was against the car, and two other officers, PO1 and PO2, grabbed his legs, which had been together, and pulled them apart. PO Cozart was described as a black male who stood approximately 5’8” tall, weighed 300 pounds, was in his mid thirties to early forties, and has a five o’clock shadow. The investigation identified this officer as PO Thomas Cozart of the 32nd Precinct. PO2 was described as a white male who was slightly shorter than PO1, weighed

approximately 180 pounds, and had short “blondish” hair. PO1 grabbed § 87(2)(b) s hat and threw it on the ground. § 87(2)(b) provided his right hand, and PO Basnight finished handcuffing him. § 87(2)(b) s lower body was then patted down by officers § 87(2)(b). § 87(2)(b) did not see because his head was facing the car. PO Basnight patted § 87(2)(b) s pants pockets, and then put his hands inside his pockets, where he had his wallet, cell phone, and keys. Nothing was removed from the pockets. PO Basnight then grabbed § 87(2)(b) s front genital area, outside of his pants, then felt underneath, and then grabbed § 87(2)(b) s buttocks and felt underneath them. In his phone statement, § 87(2)(b) stated that PO Cozart searched him, and while searching him, grabbed § 87(2)(b) s “private area” very hard, just to be rude. At some point, § 87(2)(b) s socks and shoes were patted down, but he did not see who conducted that part of the frisk. § 87(2)(b) described his own demeanor as confused, but compliant. In his phone statement, § 87(2)(b) stated that three unidentified male officers who were described as white, male, slim, in their early twenties, and in uniform, who looked like they were related to each other, held § 87(2)(b) against the police car and choked him before he was handcuffed. Then his other hand was placed into handcuffs.

PO Basnight escorted § 87(2)(b) to one of the vans and put him inside. § 87(2)(b) was also arrested and placed in the same van. While § 87(2)(b) was being arrested, he saw § 87(2)(b) being handcuffed in the street by unknown officers. After § 87(2)(b) was placed inside the van, he tried to get a friend’s attention so he could retrieve his cap, but his friend could not hear him, as the van doors were closed. PO Basnight, PO Cozart, PO1, PO2, and PO3, who was a white uniformed male whom § 87(2)(b) did not see clearly, all rode in the van. They all went with him to the stationhouse on West 135th Street, between 7th and 8th Avenue. § 87(2)(b) and § 87(2)(b) were escorted inside the stationhouse, to the front desk. Many officers who were already in the stationhouse, plus all of the officers from the van who escorted § 87(2)(b) and § 87(2)(b) came to the desk area. § 87(2)(b) asked PO Cozart to loosen his handcuffs, because they were very tight. PO Cozart told him, “Shut the fuck up before I sock you in the mouth.” No one responded. In his phone statement, § 87(2)(b) stated that PO Cozart told him “Shut the fuck up. I’m going to sock you in the mouth if you don’t shut the fuck up,” while inside the van on the way to the stationhouse. He also alleged that PO Cozart called him an “ignorant hoodlum,” and said, “This is exactly why we put you in handcuffs. You’re going to jail,” during the same trip. An unknown officer inside the van told § 87(2)(b) “Shut the fuck up, or we’ll fuck you up.” During his phone statement, § 87(2)(b) stated that he asked PO Cozart to loosen his handcuffs, and they were not loosened, but he did not mention any discourteous language on the part of PO Cozart.

§ 87(2)(b) was taken to a holding cell, and his mother was eventually called. She arrived to pick up § 87(2)(b) s possessions, and asked PO Basnight why her son was arrested. PO Basnight told her, “Because your son is stupid and doesn’t know how to walk fast enough.”

§ 87(2)(b) was arrested for § 87(2)(b), and believed § 87(2)(b) was arrested for the same charges. § 87(2)(b) was not injured, and did not seek medical attention.

Complainant: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b) black female, and is the mother of § 87(2)(b)

§ 87(2)(b) was not present for the incident, but filed the initial complaint on July 29, 2010 (encl. 5a-e). § 87(2)(g)

§ 87(2)(g) . § 87(2)(b) stated that the officers “pounced” on a group of teens who were not harassing anyone. PO Basnight shoved § 87(2)(b) and told him to walk faster. § 87(2)(b) turned around and asked PO Basnight why he shoved him. PO Basnight then “threw” him against a patrol car and arrested him. When § 87(2)(b) asked why he was being arrested, PO Basnight told him it was because he was an “ignorant thug.” § 87(2)(b) complained to PO Basnight about the tightness of the handcuffs, and PO Basnight told him to “shut up.”

While § 87(2)(b) was being driven to the stationhouse, he complained to PO Cozart that his handcuffs were too tight. PO Cozart told him, “Shut up or I will punch you in your mouth.” § 87(2)(b) asked PO Cozart for his badge number, and PO Cozart shoved the badge in his face, almost hitting him in the eye, and told him, “Here punk, here it is, what are you going to do about it?”

When § 87(2)(b) arrived at the stationhouse, she was told by PO Basnight that there had been a melee on § 87(2)(b) involving a lot of teenagers who refused to leave when instructed.

Witness: § 87(2)(b)

- § 87(2)(b) is a black male and is a friend of § 87(2)(b)

§ 87(2)(b) provided a brief phone statement on October 21, 2010, though he stated that he only vaguely remembered the incident (encl. 9a). He did not want to provide information about himself, but confirmed his phone number. § 87(2)(g)

After police arrived and told the crowd to disperse, § 87(2)(b) asked the officers why they had to leave. An unknown officer may have then “shoved” § 87(2)(b) in the face once, gently. He did not remember where in the head the “shove” occurred or exactly how the officer did so. § 87(2)(b) did not remember what § 87(2)(b)'s reaction was, but stated that he was angry. The officer then immediately handcuffed § 87(2)(b). § 87(2)(b) did not believe that § 87(2)(b) resisted arrest, but did not remember if he moved his body while being handcuffed. § 87(2)(b) was approximately three feet from § 87(2)(b) while he interacted with police, and stated that there were “a lot” of other people around, but did not remember if there was anyone between himself and § 87(2)(b) and the officers, or if his view was obstructed.

Witness: § 87(2)(b)

- § 87(2)(b) is a black male and is a friend of § 87(2)(b)

§ 87(2)(b) provided a phone statement on October 21, 2010 (encl. 8a). He did not want to provide information about himself, but confirmed his phone number. When the investigator called § 87(2)(b) he first stated that he did not know anyone by the name of § 87(2)(b) or § 87(2)(b) that he did not remember anything that happened on July 24, 2010, and did not want to give a statement. He called back less than an hour later and stated that he had been in the middle of a class when the investigator first called, and his mind was somewhere else. He then agreed to provide a statement. § 87(2)(g)

Three unmarked black Impalas arrived at the location, as well as four marked vans and an unknown number of marked patrol cars. After being told to move, not everyone in the crowd moved, and the officers started to arrest whoever they could catch. The crowd then ran away, and no one interfered with the arrests. § 87(2)(b) started to walk away, and § 87(2)(b) was caught. § 87(2)(b) was ten feet from § 87(2)(b) and across a wooden police

barricade when § 87(2)(b) was "grabbed" by police. § 87(2)(b) was in the middle of the street at this point, and § 87(2)(b) was on the sidewalk. § 87(2)(b) was screaming § 87(2)(b)'s name, trying to figure out where he was, then he saw him. Later in his statement, § 87(2)(b) stated that he was with § 87(2)(b) the entire time. § 87(2)(b) saw three officers grab § 87(2)(b) and push him to the ground, or § 87(2)(b) tripped and fell. Later in his statement, § 87(2)(b) stated that § 87(2)(b) was brought to the ground when one officer hit him with a night stick and another pushed him to the ground. Once § 87(2)(b) was on the ground, one officer either held him down or tried to get his hands in order to handcuff him while a second officer held his face against the ground. § 87(2)(b) did not see anyone hit § 87(2)(b) in the face. § 87(2)(b) did not move, but shouted questions about why he was stopped. § 87(2)(b) may have been next to § 87(2)(b) during the incident. Other officers were tasing other kids from the crowd.

The officers held § 87(2)(b) with his face on the ground for twelve to thirteen minutes while other officers cleared the crowd away. § 87(2)(b) watched what was going on with § 87(2)(b) for approximately five to ten minutes, until officers ran towards him, and then he left. When § 87(2)(b) left, § 87(2)(b) was still on the ground. At some point before he left, § 87(2)(b) saw an officer take out a taser, but never saw him use it. He later heard from someone who was there that § 87(2)(b) may have been tasered during the incident. § 87(2)(b) did not remember any of the officers' descriptions, including their races, except that they were male, and some wore uniforms.

Attempts to Contact Civilians

On October 21, 2010, the undersigned investigator called § 87(2)(b) who stated that § 87(2)(b) had moved from his previous address to a new address that he did not know, and that § 87(2)(b) had no phone. The investigator called § 87(2)(b) on October 21, 2010, and was told by § 87(2)(b) that he did not wish to provide a statement or participate in an investigation. On October 21, 2010, Lexis Nexis results for § 87(2)(b) and § 87(2)(b) were received. There was one address each for § 87(2)(b) and § 87(2)(b) and no phone numbers. The same day, first please call letters were sent to § 87(2)(b) and § 87(2)(b). The same day, a 411.com search for § 87(2)(b) contact information came back negative. Final please call letters were sent to § 87(2)(b) and § 87(2)(b) on March 17 and March 18, 2011, respectively. On March 28, 2010, the investigator confirmed that § 87(2)(b) and § 87(2)(b) were not incarcerated, via the Department of Corrections inmate finder. To date, none of the letters have been returned by the USPS, and no calls have been received from § 87(2)(b) or § 87(2)(b).

NYPD Statements:

Subject Officer: PO JAYSEN BASNIGHT

- § 87(2)(b)-old black male who § 87(2)(b), and has black hair and brown eyes.
- On the date of the incident was assigned to 32nd Precinct conditions, in uniform, from 10:00pm on July 24, 2010, until 6:30am on July 25, 2010. He was assigned to a marked van and may have been working with two or three other police officers, but was unsure and could not identify them.

Memo Book

At 11:00pm, § 87(2)(b), § 87(2)(b) and § 87(2)(b) were arrested. § 87(2)(b) picked up § 87(2)(b) possessions, and § 87(2)(b) mother picked up his belongings. PO Basnight filled out an online OLBS (encl. 10a-d).

OLBS

§ 87(2)(a) 160.50

CCRB Interview

PO Basnight provided a CCRB statement on December 10, 2010 (encl.10k-m). At approximately 11:00pm on July 24, 2010, PO Basnight was on duty at § 87(2)(b) around § 87(2)(b), in Manhattan. He may have been working with two or three other officers but was not sure and did not recall the names of the officers. There had been numerous calls reporting roving bands of kids, who were going up and down § 87(2)(b) in Manhattan, causing trouble. PO Basnight reported that the problem began in the bordering 28th Precinct and moved south into the 32nd Precinct.

The group of kids was at least thirty to forty people, though there could have been more. The crowd PO Basnight encountered during the incident was displaying gang signs at each other, fighting each other, and throwing bottles at each other. The group spilled over the sidewalks and into the street, and blocked north and south traffic on § 87(2)(b).

PO Basnight and the other officers with him drove up and down § 87(2)(b) instructing the crowd to stop fighting and to disperse. PO Basnight and his partners parked their van near the corner of § 87(2)(b) and § 87(2)(b) and continued to try to break up the crowd by issuing orders to disperse. In total, PO Basnight spent approximately thirty to forty minutes verbally attempting to get the crowd to disperse. In response, the crowd would run away from the officers, but they continued to fight and throw bottles at each other. In addition to fighting other members of the crowd, the group began to interfere with restaurants in the vicinity of § 87(2)(b) and § 87(2)(b) by breaking up chairs and knocking over tables in their outdoor seating areas.

After exhausting their verbal options, as bottles were still being thrown and fighting was still taking place, PO Basnight and the other officers with him approached the group that had been breaking up café chairs and the officers all “grabbed whoever they could grab.” PO Basnight explained that the officers could not grab all of the crowd members, as there were so many more of them. At some point, several other police cars from the 32nd Precinct arrived, but PO Basnight could not remember when, how many, or who arrived. Because he was focused on his own activity, PO Basnight did not know what other officers did during the incident.

When PO Basnight encountered § 87(2)(b) he was part of the crowd that had been interfering with the restaurant seating. PO Basnight did not remember what § 87(2)(b) had been doing within the crowd, and stated that it was a large crowd, and that he could not observe or remember every motion of every person in the crowd. PO Basnight did not specifically single § 87(2)(b) out of the crowd and could not say whether § 87(2)(b) was behaving in such a way that led PO Basnight to engage with him. PO Basnight told § 87(2)(b) specifically, “You have to clear the corner,” several times, but § 87(2)(b) did not move. When he did not move, PO Basnight did not issue instructions, and attempted to arrest him by grabbing one of his arms in front of § 87(2)(b) s body with

the intention of rear cuffing him after one arm was handcuffed. At this point, they both were on the sidewalk, near the corner of § 87(2)(b) on § 87(2)(b). Before PO Basnight could handcuff the first arm, § 87(2)(b) placed both his arms in front of his body, at approximately chest level, with his hands in fists. PO Basnight felt that this was a fighting position, based solely on § 87(2)(b)'s body language. PO Basnight tried to turn § 87(2)(b) so that his back was to him, in order to handcuff his arms behind his back. § 87(2)(b) turned his body so that he was again facing PO Basnight, and placed his arms in the same fighting position as before. As PO Basnight and § 87(2)(b) interacted, they both walked from the sidewalk, into the street, towards PO Basnight's van. PO Basnight punched § 87(2)(b) who was still facing the officer, once somewhere on his body, but could not remember where, in order to stop him from resisting and handcuff him. Once PO Basnight punched him, § 87(2)(b) stopped resisting and PO Basnight was able to finish handcuffing him. § 87(2)(b) was in standing position the entire time, and PO Basnight did not remember if § 87(2)(b) was ever put against the side of the van or if he had contact with the van at all.

PO Basnight believed that one or more of the officers he was working with might have helped him handcuff § 87(2)(b) but he was not sure, and did not know who might have helped or how they helped. PO Basnight believed that § 87(2)(b) would have been frisked after being handcuffed, and before being placed in the van, but did not remember who conducted the frisk. PO Basnight did not remember what § 87(2)(b) was arrested for, and did not note it in his memo book.

Some of the crowd had run away at some point, but much of the crowd was still present when § 87(2)(b) was handcuffed. PO Basnight did not remember any crowd members trying to interfere with § 87(2)(b) handcuffing, and did not remember anyone from the crowd addressing him. PO Basnight did not remember what § 87(2)(b) was wearing, what his demeanor was like during the incident, or if § 87(2)(b) said anything to him. PO Basnight never pushed § 87(2)(b) never said the word "fuck" to § 87(2)(b) or anyone else during the incident, and did not remember seeing anyone or hearing of anyone throwing § 87(2)(b)'s hat. He did not remember whether § 87(2)(b) had been wearing a hat. PO Basnight stated that he and the other officers he was working with would have gone into the stationhouse to escort § 87(2)(b) and the other individual who was arrested, and would have been at the front desk with the arrestees. PO Basnight did not hear any officer say anything like, "shut the fuck up before I sock you in the mouth."

Subject Officer: PO THOMAS COZART

- § 87(2)(b) -old black male who § 87(2)(b), with a bald head and brown eyes.
- On the date of the incident PO Cozart was assigned to 32nd Precinct conditions, in uniform, in a marked van, from 10:00pm through 6:35am. PO Cozart did not remember who he worked with that day and believed it was PO Basnight and PO Tedeschi.

Memo Book

PO Cozart was involved in an incident in August 2010 in which he discharged his weapon, and he was rushed to the hospital. While he was in the hospital, all of the items in his vehicle were secured by a supervisor for investigation, including his memo book, which was not returned to him. Consequently, PO Cozart could not provide his memo book to the CCRB.

CCRB Statement

PO Cozart provided a statement at the CCRB on February 11, 2011 (encl. 11a-c). § 87(2)(b)

(g)

PO Cozart observed approximately fifteen to twenty members of the crowd begin physically fighting by swinging punches at each other in the middle of the street.

The officers exited their van and went to break up the fight. PO Cozart restrained one of the individuals who was fighting, and other officers “grabbed” other people who had also been fighting, and placed them under arrest. He did not remember if any other officers helped him restrain the individual with whom he interacted. All of the people who were arrested had been fighting. PO Cozart did not remember if the person he restrained struggled or resisted. Another officer whom he did not remember handcuffed this individual. PO Cozart did not remember what other officers were doing, other than the general idea that they were arresting people involved in the fight, because he was trying to “get things under control as soon as possible.”

PO Cozart thought that the arrestees were then transported to the 32nd Precinct stationhouse in his van, but he was not sure if another vehicle arrived to help transport as well. He believed that he rode back to the stationhouse with the members of his team, as well as at least some of the arrestees. PO Cozart did not remember how many people were arrested.

PO Cozart did not remember if he conducted any of the searches at the desk or interacted with any arrestees at that time, and did not remember if he escorted anyone back to the holding cells. PO Cozart never said anything like, “Shut the fuck up before I sock you in the mouth,” to anyone. PO Cozart was shown a photo of § 87(2)(b) and § 87(2)(b). Neither individual looked familiar and PO Cozart did not know if either individual was the person he restrained at the scene.

Witness Officer: PO MICHAEL TEDESCHI

- § 87(2)(b) -old white male who § 87(2)(b) has brown hair and brown eyes.
- On the date of the incident PO Tedeschi was assigned to 32nd Precinct conditions, in uniform, in a marked van, from 10:00pm through 6:35am. PO Tedeschi did not remember who he worked with that day and believed the van was number 8613.

Memo Book

PO Tedeschi was shot in a police involved shooting on August 8, 2010. After he returned from the hospital, he learned that everything that had been in his vehicle that day, including his memo book, had been taken for investigation. To date, he has not received his memo book back, and as a result, was unable to bring it to the CCRB.

CCRB Statement

PO Tedeschi provided a statement at the CCRB on February 8, 2011 (encl. 13a-b). He did not remember the incident. PO Tedeschi stated that every weekend in the summer, there are large crowds that form and move in the vicinity of the incident location. There are often parties held nearby, and when they end, there are “thousands” of kids who pour out onto the street. He did remember that on one occasion, a large crowd ran through the outdoor seating in front of § 87(2)(b), knocking chairs over. He recalled that a sergeant radioed instructions to move the crowd, which was roving between the borders of the 28th and 32nd Precincts. However, he did not remember anything else about the incident, other than the kids running away as the officers got out of their van. PO Tedeschi was shown a photo of § 87(2)(b) who he did not recognize.

Witness Officer: SGT ADAM MERCADO

- § 87(2)(b) old Hispanic male who § 87(2)(b) has salt and pepper hair and brown eyes.
- Sgt. Mercado worked from 2:50pm until 11:47pm on July 24, 2010, in uniform as desk sergeant at the 32nd Precinct stationhouse.

Memo Book

Sgt. Mercado had no entries in his memo book regarding this incident (encl. 12a-b).

CCRB Interview

Sgt. Mercado was interviewed at the CCRB on December 10, 2010 (encl. 12c-d). He was on duty at the front desk in the 32nd Precinct stationhouse during the time of the incident, but did not recall anything related to the incident, and did not recall seeing § 87(2)(b) or § 87(2)(b) or hearing anything about the incident.

NYPD Documents

SPRINT CD and Print-Out

The SPRINT CD and Print-Outs indicate that a large disorderly crowd was moving between the 25th, 28th and 32nd Precincts, and that officers from all three precincts responded. There was one 25th Precinct arrest at 11:14pm, and four 32nd Precinct arrests at 11:28pm (encl. 14a-d).

Command Log

The command log notes that § 87(2)(b) and § 87(2)(b) were arrested at § 87(2)(b) and § 87(2)(b) by PO Basnight. § 87(2)(b)'s arrest time is listed as 11:00pm, and he was charged with § 87(2)(a) 160.50. § 87(2)(b)'s arrest time was not listed, and his charge was § 87(2)(a) 160.50. Both § 87(2)(b) and § 87(2)(b) appearances were apparently normal, and they were both signed in at the 32nd Precinct stationhouse at 11:12pm (encl. 14g).

Roll Call

The 32nd Precinct roll call reflects the fact that Sgt. Mercado was the desk sergeant when § 87(2)(b) and § 87(2)(b) were brought to the stationhouse, and that PO Basnight, PO Cozart, and PO Tedeschi were all on duty together at the time of the incident (encl. 14h-i).

Arrest Photos

Both § 87(2)(b) and § 87(2)(b) arrest photos did not show any visible physical injuries (encl. 14e-f).

Arrest for Incident and Disposition

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Status of Civil Proceedings

- § 87(2)(b) has not filed a Notice of Claim with the City of New York as of March 22, 2011, with regard to the incident (encl. 19h).

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) or § 87(2)(b) (encl. 3a-4a).

Subject Officers CCRB History

- PO Jaysen Basnight has been a member of the service for six years and there is one substantiated CCRB allegation against him. PO Basnight received command discipline for using discourteous language, in case number 200706401 (encl. 1a).
- PO Thomas Cozart has been a member of the service for five years and there is one substantiated CCRB allegation against him. PO Cozart received instructions for force (hit against inanimate object) in case number 200710853 (encl. 2a).

Conclusion

Allegations Not Pleaded

§ 87(2)(g)

Identification of Subject Officers

§ 87(2)(g)

§ 87(2)(b) accurately described the officers, whose names he provided. Additionally, PO Basnight acknowledged interacting with § 87(2)(b) and PO Cozart acknowledged being involved in the incident.

Investigative Findings and Recommendations

Allegation A – Discourtesy: At § 87(2)(b) and § 87(2)(b) in Manhattan, PO Jaysen Basnight spoke obscenely and/or rudely to § 87(2)(b)

§ 87(2)(b) alleged that PO Basnight uttered the word “fuck” towards him. PO Basnight denied using profanity towards § 87(2)(b) § 87(2)(g)

For these reasons, it is recommended that **allegation A be unsubstantiated.**

Allegation B - Discourtesy: At § 87(2)(b) and § 87(2)(b) in Manhattan, PO Jaysen Basnight spoke obscenely and/or rudely to and § 87(2)(b)

§ 87(2)(g), it is recommended that **allegation B be closed as victim unavailable.**

Allegation C – Force: At § 87(2)(b) and § 87(2)(b) in Manhattan, PO Jaysen Basnight used physical force against § 87(2)(b)

§ 87(2)(b) alleged that after being told to move, PO Basnight punched him in the left jaw twice with his right hand. § 87(2)(b) testified that he did not resist arrest, and kept his hands to his sides until PO Basnight told him to put his hands up. § 87(2)(b) did not receive any injuries, which his arrest photo reflected. § 87(2)(b) also alleged in his phone interview that he was choked by unidentified officers, but did not repeat this allegation in his verified statement to the CCRB. The fact that he failed to mention such a serious use of force calls his credibility into question. PO Basnight, who did admit to punching § 87(2)(b) once somewhere on his body, stated that he did so only after § 87(2)(b) resisted handcuffing and raised his hands in a “fighting stance” twice. The OLBS report stated that § 87(2)(b) “flailed” his arms and made it difficult for PO Basnight to handcuff him. As the report did not specifically state how the arms were moved, it is unclear whether PO Basnight’s CCRB testimony matches the OLBS report in this respect. The OLBS report also stated that no physical force was used, which was not consistent with PO Basnight’s CCRB testimony. § 87(2)(g)

§ 87(2)(b) stated that an officer “shoved” § 87(2)(b) in the face, once, gently. He did not remember if § 87(2)(b) moved his body at all while being handcuffed. § 87(2)(b) who at first told the investigator that he did not know § 87(2)(b) later stated that three officers grabbed § 87(2)(b) and pushed him to the ground, or § 87(2)(b) tripped and fell to the ground. Later in his statement, § 87(2)(b) stated that § 87(2)(b) was brought to the ground when one officer hit him with a night stick and another pushed him to the ground. Once § 87(2)(b) was on the ground, one officer either held him down or tried to get his hands in order to handcuff him while a second officer held his face against the ground. § 87(2)(b) did not see anyone hit § 87(2)(b) in the face. As mentioned above, PO Tedeschi did not remember details of the incident, and was unable to comment on force used against § 87(2)(b). § 87(2)(b) § 87(2)(g)

Accordingly, it is recommended that **allegation C be closed as unsubstantiated.**

Allegation D – Discourtesy: Inside the 32nd Precinct stationhouse, PO Thomas Cozart spoke obscenely and/or rudely to § 87(2)(b)

Allegation E – Abuse: Inside the 32nd Precinct stationhouse, PO Thomas Cozart threatened § 87(2)(b) with the use of force.

§ 87(2)(b) alleged that PO Cozart used the word “fuck” towards him and threatened to “sock” him if he did not shut up. PO Cozart denied using profanity towards § 87(2)(b) or threatening to hit him. § 87(2)(g)

§ 87(2)(g)

For these reasons, it is recommended that **allegations D and E be unsubstantiated.**

Team: 1

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date